



SPONSOR: Sen. Hansen & Rep. Morrison
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Buckson, Lockman, Mantzavinos, Pettyjohn, Brown,
Cruce, Hocker, Hoffner, Lawson, Paradee, Pinkney,
Poore, Richardson, Sturgeon, Walsh; Reps. Burns,
Gorman, Griffith, Heffernan, Neal, Ross Levin, Phillips,
S. Moore

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 88

AN ACT TO AMEND TITLE 21 OF THE DELAWARE CODE RELATING TO RULES OF THE ROAD.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Chapter 41, Title 21 of the Delaware Code by making deletions as shown by strike through and
2 additions shown by underline as follows:

3 §4129. Civil penalty for evasion of tolls.

4 (c) In the event of nonpayment of the proper toll, as evidenced by visual observation, a video surveillance device
5 or other method of identifying the vehicle, the Department of Transportation or its designee or, in the case of the Delaware
6 Memorial Bridge, the Delaware River & Bay Authority or its designee may send an advisory and payment request to the
7 owner of the vehicle by regular mail at the address of record with the Division of Motor Vehicles, or, if applicable, the
8 licensing authority of another jurisdiction, providing the owner with the opportunity to resolve the matter prior to the
9 issuance of a summons and complaint that charges a violation of this section. The advisory and payment request shall
10 contain sufficient information to inform the owner of the nature, date, time and location of the alleged violation. In addition
11 to the payment of the proper toll, the Department of Transportation or, in the case of the Delaware Memorial Bridge, the
12 Delaware River and Bay Authority or its designee may require as part of the advisory and payment request that the owner
13 pay a reasonable administrative fee of up to \$25 to the entity processing the violation. If the owner fails to pay the required
14 toll and fee, the owner shall be subject to liability on the ~~thirty-first~~ sixty-first day following the date of the violation is
15 transmitted, for the violation of this section by the vehicle owner or operator.

SYNOPSIS

This bill will improve customer service by extending the due date on toll violations from the thirty-first day to the sixty-first day, after the date the violation is transmitted. This bill amends the administrative fee by stating that the fee may be "up to" \$25.

Author: Senator Hansen